Showing contexts for: **specific performance property** in M/S.Aditya Real Estates vs P.Baskar on 7 March, 2018

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> 5.6.The Learned Counsel for the Appellant/Plaintiff cites the Judgment of the Hon'ble Supreme Court in Appeal (Civil) Case No.1566 of 1991 dated 12.09.2001 between Adcon Electronics Private Limited V. Daulat and another, whereby and whereunder, it is observed as under:

> In a suit for **specific performance** of contract for sale of immovable property containing stipulation that on execution of the sale deed the possession of the immovable property will be handed over to the purchaser, it is implied that delivery of possession of the immovable property is part of the decree of **specific performance** of contract. But in this connection it is necessary to refer to Section 22 of the **Specific** Relief Act, 1963 which runs:

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(2) No relief under clause (a) or clause(b) of sub-section (1) shall be granted by the court unless it has been **specific**ally claimed:

> Provided that where the plaintiff has not claimed any such relief in the plaint, the court shall, at any stage of the proceeding, allow him to amend the plaint on such terms as my be just for including a claim for such relief.

> It may be seen that sub-section(1) is an enabling provision. A plaintiff in a suit of **specific performance** may ask for further reliefs mentioned in clauses (a) and (b) thereof. Clause (a) contains reliefs of possession and partition and separate possession of the property, in addition to **specific performance**. The mandate of sub-section (2) of Section 22 is that no relief under clauses (a) and (b) of sub-section (1) shall be granted by the Court unless it has been **specific**ally claimed. Thus it follows that no court can grant the relief of possession of land or other immovable property, subject-matter of the

> agreement for sale in regard to which **specific performance** is claimed, unless the possession of the immovable property is **specific**ally prayed for. In the instant case the suit is for **specific performance** of agreement for sale of the suit property wherein relief of delivery of the suit property has not been **specific**ally claimed as such it cannot be treated as a suit for land.

> 24. The learned counsel for the appellant placed reliance on a Division Bench decision of this Court in the case of N.Dhanalakshmi and two others V. S.Eknathan, Proprietor, Eknath Real Estates, to which one of us (Shivaraj Patil, J) was a party, to contend that the suit for **specific performance** of the agreement to sell property is not suit for land, and hence leave granted ought not have been revoked. In our view, the said Judgment does not help the plaintiff appellant.

> 25. That was a suit principally for **specific performance** of an agreement, and alternatively for refund of money. In the said suit, ancillary relief of permanent injunction was sought, for restraining the respondents from alienating or dealing with the suit property in anyway. On the facts of that case it is clear that neither the suit was one for title or possession; in other words neither the title nor possession would be affected by granting a decree for **specific performance**. That was not a suit in which the primary object was to establish claims regarding title to the property or to possession of the property. 5.8.The Learned Counsel for the Appellant seeks in aid of the decision in Dhanalakshmi and two others V. S.Ekanathan, Proprietor, Eknath reported in (1998) 1 MLJ 132 wherein at paragraph 14, it is observed as under:

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b) Granting permanent injunction restraining the Defendants or any person/s claiming through or under them from in any manner alienating or encumbering the suit schedule B **properties**;

c) Directing the defendants to pay cost of this suit; 6.4.The Learned Counsel for the Respondent cites the decision in B.Ratansingh V. P.G.Sekar, 2014 (4) CTC 735 at special page 748 and 749, at paragraphs 35, 37 and 38, wherein it is observed as follows:

35. In the Judgment reported in Adcom Electronics Pvt. Ltd. v. Daulat and another, 2001 (4) CTC 39 (SC): 2001 (7) SCC 698: AIR 2001 SC 3712, which is relied upon by the learned Counsel appearing for the Respondent/Plaintiff, Clause 12 of the Letters Patent was considered by the Hon'ble Supreme Court. The Hon'ble Supreme Court though held that in a Suit for **Specific Performance** of Contract for Sale of immovable property containing stipulation that on execution of a Sale Deed, the possession of the immovable property will be handed over to the purchaser, it is implied that delivery of possession of the immovable property is part of the Decree of **Specific Performance** of contract. But in view of the mandate of sub-section(2) of Section 22 of the **Specific** Relief Act, no relief under clauses (a) & (b) of sub-section (1) shall be granted by the Court unless it has been **specific**ally claimed and therefore, in a Suit where the prayer is for **Specific Performance** of Agreement of Sale, without a prayer for delivery of possession, the Suit cannot be treated as 'Suit for land' and the Suit is simpliciter for **Specific Performance** of a Contract for Sale and it is a Suit for enforcement of terms of contract and the title to the land as such is not the subject matter of the Suit.